

15.7 MINOR ENCROACHMENTS

This section applies to the following structures that are permitted to encroach from private property onto public property:

- Awnings;
- Balconies;
- Shutters;
- Building signs;
- Decorative structures;
- Private security lighting;
- CCTV cameras; and
- Special drainage structures.

Objectives

- (a) To ensure encroachments from private property onto public property are safe for pedestrians and vehicular traffic.
- (b) To ensure encroachments conserve the characteristics of an area.
- (c) To ensure that minor encroachments do not result in any loss of public amenity or safety and do not compromise future plans for road realignment or footpaths and stormwater drainage.
- (d) To allow architectural features that enhance the appearance of the building and streetscape.
- (e) To preserve and restore buildings which are a heritage item or located within a heritage conservation area

Controls

15.7.1 General

- (a) Encroachments are to be of a minor nature.
- (b) Encroachments must not pose a hazard, particularly to pedestrians or other users of public space.
- (c) Encroachments must be consistent with the character of the surrounding area.
- (d) Encroachments must:
 - (i) Be a maximum of 300mm;
 - (ii) Not interrupt pedestrian movement or public space or amenity;
 - (iii) Not enter into public space between ground/footpath level and 1m above ground/footpath level;
 - (iv) Not reduce the width of a footpath to less than 1.8 metres wide;
 - (v) Not extend over a vehicular carriageway; and
 - (vi) Must have a minimum setback of 600mm from the kerb face.